

**HIGH COURT OF JUDICATURE FOR RAJASTHAN BENCH AT
JAIPUR**

D.B. Special Appeal Writ No. 1269 / 2017

Smt. Sulbha Sinsinwar W/o Mohan Singh, by Caste Jat, R/o Village Gudawali, Gram Panchayat and Tehsil Nadbai, District Bharatpur (Raj.)

----Appellant

Versus

1. Smt. Beena W/o Dr. Jitendra Singh, by Caste Jat, Aged About 52 Years, R/o Village Pidwali, Panchayat Samiti and Tehsil Bayana, District Bharatpur (Raj.) and Permanent Address As Mentioned in the Election Petition is C-28, Shakti Apartment, Sector-9, Rohini, Sai Baba Chowk, New Delh-85

2. District Election Officer (Panchayat) and District Collector, Bharatpur (Raj.)

3. Election Officer, Bharatpur, Zila Pramukh Election (Panchayat) Bharatpur Through District Election Officer (Panchayat) and District Collector, Bharatpur (Raj.)

----Respondents

Connected With

D.B. Special Appeal Writ No. 1271 / 2017

Smt. Snehlata W/o Bheem Singh, by Caste Jat, Resident of Village Pidawali, Gram Panchayat, Kohra, Panchayat Samiti and Tehsil Bayana, District Bharatpur (Raj.)

----Appellant

Versus

1. Smt. Beena W/o Dr. Jitendra Singh, by Caste Jat, Aged About 52 Years, R/o Village Pidwali, Panchayat Samiti and Tehsil Bayana, District Bharatpur (Raj.) and Permanent Address As Mentioned in the Election Petition is C-28, Shakti Apartment, Sector-9, Rohini, Sai Baba Chowk, New Delh-85

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-----Respondents

For Appellant(s) : Mr. K.K. Sharma, Sr. Adv. with Mr. M.S. Rajpurohit
in appeal no.1269/2017

Mr. Suresh Pareek, Sr. Adv. with Mr. N.C.
Sharma in appeal no.1271/2017

For Respondent(s) : Mr. R.N. Mathur, Sr. Adv. with Mr. Ajay Choudhary,
Mr. Akshit Gupta for Mr. J.M. Saxena, AAG

HON'BLE MR. JUSTICE K.S.JHAVERI

HON'BLE MR. JUSTICE VIJAY KUMAR VYAS

JUDGMENT

16/01/2018

1. In both these appeals common question of law and facts are involved hence they are decided by this common judgment.

2. By way of these appeals, the appellants have assailed the judgment and order of the learned Single Judge whereby learned Single Judge has allowed the writ petitions preferred by the returned candidate (in short 'RC') whose election has been set aside by the order of the Election Tribunal which judgment and order was subject matter of the petitions.

3. The broad facts of the case are that the present appellants being petitioners in the election petitions, one by election petitioner Snehlata (Election Petition No.167/2016) and the other by Smt. Sulbha Sinsinwar (Election Petition No.166/2016).

4. For convenience of the court, the facts of Smt. Snehlata are taken into consideration. Snehlata, the election petitioner-appellant herein filed an election petition alleging that the RC's

nomination form for contesting on the post of member of ward number 14, Zila Parishad Bharatpur (hereinafter 'the Ward No.14') had been improperly and collusively accepted by the Returning Officer despite her having furnished wrong and insufficient information in respect of the criminal cases pending against her. It was also alleged that the returning officer overlooking the fact of the RC having furnished insufficient details with regard to the survey number, total area and demarcation of the immovable properties both commercial and residential belonging to her and her spouse and dependent children improperly accepted her nomination form. It was further alleged that the information supplied by the RC as warranted in form 4(d) appended to the Rajasthan Panchayati Raj (Election) Rules, 1994 (hereinafter 'the Rules of 1994') as also in the affidavit filed in support thereto suffered from the same lacunae, suffered a mismatch and some portion of the affidavit were even incomplete and hence the nomination form should have been rejected for not being duly filled as required by Rule 25(1) of the Rules of 1994. It was further submitted that the affidavit filed by the RC before the Returning Officer, required to be furnished in a prescribed format, was not so furnished. The election petitioner's case was thus that in the circumstances, the nomination of RC ought to have been rejected in terms of Rule 25(2) of the Rules of 1994 which was not so illegally and improperly done. It was also asserted that the nomination form of the RC was also otherwise vitiated for lack of details which tantamounted to corrupt practice. The RC was also

alleged to be ineligible to contest the election with reference to the eligibility prescribed therefor under the Act of 1994. It was also submitted that even otherwise the RC was not entitled to contest the election in issue for the reason that she was not an ordinary resident of village Pidawali Gram Panchayat Khohara, Panchayat Samiti and Tehsil Bayana District Bharatpur, and hence was not a lawfully registered voter of ward No.14, Zila Parishad Bharatpur. Instead she was alleged to be a resident of Rohini Nagar New Delhi, her addresses for the last several years where she was stated to have in fact exercised her right to vote in the elections to the Loksabha Delhi, Delhi Assembly election, as also the Delhi Municipal Corporation. It was submitted that the election of RC as a member of Ward No.14 Pidawali District Bharatpur was thus liable to be quashed and set aside.

5. The first election petition challenges the election of ward no.14 wherein the contest was between the applicant in the election petition namely Snehlata referred hereinabove who is appellant and between the returned candidate respondent no.1 who has been declared elected.

6. The election tribunal while considering the matter has framed different issues which reads as under:-

"6. उभय पक्षकारों के अभिचनों के आधार पर स्नेहलता की चुनाव याचिका में निम्न विवादक विरचित किए गये:-

1. आया दिनांक 06.02.2015 को जिला परिषद भरतपुर के जिला परिषद सदस्य के पद की प्रत्याशी श्रीमती बीना सिंह का नाम-निर्देशन पत्र निर्वाचन अधिकारी द्वारा अपने अधीनस्थ कर्मचारीगण एवं प्रत्याशी श्रीमती बीना सिंह से मिलकर गलत रूप से स्वीकार किया, जबकि प्रत्याशी

श्रीमती बीना सिंह ने अपना नाम-निर्देशन पत्र में गलत सूचनाएं अंकित की थीं तथा निर्धारित प्रारूप 4(घ) (नियम 25 व 58 राज. पंचायतीराज नियम) में अपने अपराधों से संबंधित सूचनाएं अंकित नहीं कीं?

2. आया श्रीमती बीना सिंह राजस्थान पंचायती राज अधिनियम 1994 के अधीन जिला परिषद सदस्य के पद की योग्यताएं नहीं रखती थीं?

3. आया प्रत्यर्थी श्रीमती बीना सिंह द्वारा प्रारूप 4(घ) की मद संख्या 4(क) में चल सम्पत्तियों यथा बैंक का नाम, कार का नम्बर, मॉडल, शेयर, एवं म्यूचुअल फण्ड की कम्पनियां एवं सीवर आस्तियों यथा वाणिज्यिक एवं आवासीय भूमि की सर्वेक्षण संख्या, सीमाएं अंकित नहीं की तथा प्रारूप में आश्रितों की संख्या और उनकी सम्पत्ति का विवरण नहीं दिया?

4. आया प्रत्यर्थी श्रीमती बीना सिंह ने अपने विरुद्ध दर्ज मुकदमों का पूर्ण विवरण प्रपत्र 4(घ) व उपाबन्ध-॥ में दस रुपये के गैर न्यायिक रसाम्प पर निर्धारित प्रारूप में अंकित नहीं किया, जिस बाबत कार्यालय सहायक रिटर्निंग अधिकारी का पंचायत चुनाव 2015 अतिरिक्त जिला मजिस्ट्रेट (शहर) भरतपुर द्वारा उक्त पूर्ति हेतु नोटिस दिया गया, किन्तु इस के बावजूद भी श्रीमती बीना सिंह के द्वारा उपाबन्ध-॥ के प्रारूप अनुसार सूचनाएं उपलब्ध नहीं कराई गई। इस प्रकार प्रत्यर्थी सं. 2 व 3

द्वारा नाम निर्देशन पत्र अवैध रूप से स्वीकार किया गया?

5. आया प्रत्यर्थी श्रीमती बीना सिंह ग्राम पिदावली, ग्राम पंचायत खाहरे बयाना में 20 वर्षों से मामूली तौर पर भी निवास नहीं करती। जिला परिषद सदस्य के चुनाव की तारीख 06.02.2015 तक भी यह नगर निगम वार्ड सं. 50 रोहिणी विधान सभा 13 नई दिल्ली की मतदाता थी। बीना सिंह ने नई दिल्ली में गत विधानसभा चुनाव, लोक सभा चुनाव, नगर निगम चुनाव में अपने मताधिकार का प्रयोग किया जिसे श्रीमती बीना सिंह ने भ्रष्ट आचरण अपनाते हुए, अपना नाम निर्देशन पत्र में अंकित करने से छिपाया। अतः प्रत्यर्थी बीना सिंह चुनाव लड़ने के अयोग्य थीं?

6. आया प्रत्यर्थी सं.1 श्रीमती बीना सिंह के खिलाफ दर्ज एफ.आई.आर. सं. 204/2013 दिनांक 15.08.2013 पुलिस थाना बगरु जिला जयपुर एवं एफ.आई.आर. सं. 530/2013 दिनांक 03.10.2013 पुलिस थाना जवाहर नगर, श्रीगंगानगर है, जो कि प्रत्याशी के भ्रष्ट आचरण को इंगित करती है जिसमें प्रत्यर्थी सं.1 के सह-अभियुक्त जी.एल. चौधरी को न्यायिक अभिरक्षा में भेजा है एवं प्रत्यर्थी सं.1 अग्रिम जमानत पर है?

7. आया श्रीमती बीना सिंह द्वारा निर्वाचन में प्रारूप के अनुसार आपराधिक प्रकरणों व सम्पत्तियों का विवरण नहीं देकर भ्रष्ट आचरण अपनाया गया है?

8. आया चुनाव परिणाम दिनांक 06.02.2015 को घोषित हुआ था और याचिका दिनांक 09.03.2015 को पेश की है। देरी का कोई कारण अंकित नहीं किया है लिहाजा याचिका अवधि बाहर प्रस्तुत होने के कारण निरस्त किए जाने योग्य है?

9. आया याचिका दीवानी प्रक्रिया संहिता के प्रावधानों के अनुसार सत्यापित नहीं की गई है, लिहाजा नियमानुसार संधारणीय नहीं है?

10. आया याचिका के साथ प्रस्तुत दस्तावेज पंचायती राज निर्वाचन नियमावली की धारा 82 के अनुसार विधि अनुकूल हस्ताक्षरित एवं सत्यापित नहीं होने से याचिका मेन्टेनेबल नहीं है?

11. आया याचिनी ने अपनी याचिका में सारभूत तथ्यों का खुलासा नहीं किया है तथा य भी अंकित नहीं किया है कि इस सब के उपरान्त के अभाव में याचिका खारिज किये जाने योग्य है?

12. आया याचिनी को कोई ट्राएबल कॉज ऑफ एक्शन उत्पन्न नहीं होता है?

13. अनुतोष?"

7. Thereafter, the Election Tribunal answered the issues in favour of the election petitioner and allowed the petition.

8. However, learned Single Judge while considering the matter has dealt with each of the issue and has reversed the finding arrived at by the election tribunal and has given judgment in favour of the RC.

9. Counsel for the appellant has taken us to Rule 25 of the Rajasthan Panchayati Raj (Election) Rules 1994 (hereinafter referred to as the Rules of 1994) which reads as under:-

"25. Presentation of nomination papers.- (1) On the day appointed under sub-clause (b) of clause (ii) of sub-rule (1) of rule 23 for the presentation of nomination papers

any person qualified under section 19 for election as a Panch and desiring to seek such election, hereafter in this chapter referred to as a candidate, shall deliver in person to the Returning Officer his nomination paper in Form IV duly filled in and signed by him or bearing his thumb impression:

Provided that if a candidate belonging SC, ST or Other Backward Class submits his nomination paper for a reserved ward, he shall attach a certificate to that effect issued by the Collector or any officer authorised by the State Government:

Provided further that a candidate belonging to SC or ST or Other Backward Class shall not be debarred to contest election from a general ward:

Provided also that no male candidate shall be eligible for filling nomination paper from a ward reserved for women.

(2) Any nomination paper not delivered as provided in sub-rule (1) shall be rejected."

10. He has also taken us to Rule 58 more particularly Rule 58(5) which reads as under:-

58. Election of members of Panchayat Samiti/Zila Parishad.— (1) In accordance with the time Schedule determined by the Commission, the District Election Officer (Panchayats) shall, by notification, call upon the constituencies of the Panchayat Samitis in the district and the constituencies of Zila Parishad to elect one member each and appoint—

[(5) In the case where ballot boxes are used, the provisions of Rule 24-A to 54 shall *mutatis mutanids* apply, and in the case where voting machines are used the provisions of Rules 24-A to 31, 35, 45, 46, 48, 48A. 48-13, 48C. 49A. 49B. 51 and 54 and Chapter IV-A shall *mutatis mutanids* apply, so far as may be, to such elections of members of Panchayat Samities Zila Parishads.]

[Provided that—]

(a) a candidate shall not be deemed to be duly nominated for election from a constituency, unless he deposits a sum of Rupees 500/- or where the candidate is a women or member of SC/ST/OBC, a sum of Rs. 250/-.

(b) the scrutiny deposit shall stand forfeited [in the case of such candidate who is not elected and fails] to secure one sixth of the total valid votes polled in the Constituency election.

(c) where a candidate has been nominated by more than one nomination paper for election not more than one deposit shall be required of him in this sub-rule.

(d) for the purpose or listing the names under Clause (ii) of Sub-rule (3) of the Rule 29, the candidates shall be classified in two categories namely (i) candidates set up by recognised political parties and (ii) other candidates, and shall be arranged in that order. Further the names of candidates in each category shall be arranged in Hindi alphabetical order.

(e) a candidate set up by a recognised political party, shall not be deemed to be duly nominated from a constituency unless the nomination paper is subscribed by one proposer being elector of the same constituency.

11. He has also taken us to form no.4 and 4(d) of Rules of 1994.

12. On going through the nomination papers which are in prescribed form, he has contended that nomination was required to be rejected since returned candidate has not disclosed the correct properties namely agriculture land and car owned by her husband.

13. He has relied upon the decision of Supreme Court in Kisan Shankar Kathore vs. Arun Dattatray Sawant and Ors. (2014) 14 SCC 162, it has been held as under :-

2. The election petition was filed under Section 100(1)(d)(i) and (iv) of the Act on the ground that in the nomination form filled in by the Appellant he had suppressed his dues payable to the Government, suppressed the assets of his spouse and also suppressed the information and assets of a partnership firm of which he is a partner. The Appellant contested the said petition. Evidence was led. After hearing the arguments, the High Court passed judgment dated August 16, 2007 accepting the plea of the first Respondent that the nomination form of the Appellant was defective and should not have been accepted by the Returning Officer.

10. First case that needs a mention, which is a milestone and triggered electoral reforms in this country, is Union of India v. Association for Democratic Reforms and Anr. MANU/SC/0394/2002 : (2002) 5 SCC 294. In this case, the Court held that it was incumbent upon every candidate, who is contesting election, to give information about his assets and other affairs, which requirement is not only essential part of fair and free elections, inasmuch as, every voter has a right to know about these details of the candidates, such a requirement is also covered by freedom of speech granted under Article 19(1)(a) of the Constitution of India. The summing up the entire discussion in the judgment can be found in the following passage:

46. To sum up the legal and constitutional position which emerges from the aforesaid discussion, it can be stated that:

1. The jurisdiction of the Election Commission is wide enough to include all powers necessary for smooth conduct of elections and the word "elections" is used in a wide sense to include the entire process of election which consists of several stages and embraces many steps.

2. The limitation on plenary character of power is when Parliament or State Legislature has made a valid law relating to

or in connection with elections, the Commission is required to act in conformity with the said provisions. IN case where law is silent, Article 324 is a reservoir of power to act for the avowed purpose of having free and fair election. The Constitution has taken care of leaving scope for exercise of residuary power by the Commission in its own right as a creature of the Constitution in the infinite variety of situations that may emerge from time to time in a large democracy, as every contingency could not be foreseen or anticipated by the enacted laws or the rules. By issuing necessary directions, the Commission can fill the vacuum till there is legislation on the subject. In Kanhiya Lal Omar case MANU/SC/0170/1985 : (1985) 4 SCC 628 the Court construed the expression "superintendence, direction and control" in Article 324(1) and held that a direction may mean an order issued to a particular individual or a precept which many may have to follow and it may be a specific or a general order and such phrase should be construed liberally empowering the Election Commission to issue such orders.

3. The word "elections" includes the entire process of election which consists of several stages and it embraces many steps, some of which may have an important bearing on the process of choosing a candidate. Fair election contemplates disclosure by the candidate of his past including the assets held by him so as to give a proper choice to the candidate according to his thinking and opinion. As stated earlier, in Common Cause case, MANU/SC/0810/1996 : (1996) 2 SCC 752 the Court dealt with a contention that elections in the country are fought with the help of money power which is gathered from black sources and once elected to power, it becomes easy to collect tons of black money, which is used for retaining power and for re-election. If on an affidavit a candidate is required to disclose the assets held by him at the time of election, the voter can decide whether he could be re-elected even in case where he has collected tons of money.

Presuming, as contended by the learned Senior Counsel Mr. Ashwani Kumar, that this condition may not be much effective for breaking a vicious circle which has polluted the basic democracy in the country as the amount would be unaccounted. May be true, still this would have its own effect as a step-in-aid and voters may not elect law-breakers as law-makers and some flowers of democracy may blossom.

4. To maintain the purity of elections and in particular to bring transparency in the process of election, the Commission can ask the candidates about the expenditure incurred by the political parties and this transparency in the process of election would include transparency of a candidate who seeks election or reelection. In a democracy, the electoral process has a strategic role. The little man of this country would have basic elementary right to know full particulars of a candidate who is to represent him in Parliament where laws to bind his liberty and property may be enacted.

5. The right to get information in democracy is recognised all throughout and it is a natural right flowing from the concept of democracy. At this stage, we would refer to Article 19(1) and (2) of the International Covenant on Civil and Political Rights, which is as under:

(1) Everyone shall have the right to hold opinions without interference.

(2) Everyone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice.

6. On cumulative reading of a plethora of decisions of this Court as referred to, it is clear that if the field meant for legislature and executive is left unoccupied detrimental to the public interest, this Court would have ample jurisdiction under Article 32 read with Articles 141 and 142 of the

Constitution to issue necessary directions to the executive to subserve public interest.

7. Under our Constitution, Article 19(1)(a) provides for freedom of speech and expression. Voter's speech or expression in case of election would include casting of votes, that is to say, voter speaks out or expresses by casting vote. For this purpose, information about the candidate to be selected is a must. Voter's (little man - citizen's) right to know antecedents including criminal past of his candidate contesting election for MP or MLA is much more fundamental and basic for survival of democracy. The little man may think over before making his choice of electing law-breakers as lawmakers.

12. The judgment in Association for Democratic Reforms led to amendment in the Act with the induction of Section 33A (already reproduced above) as well as Section 33B therein. Election Commission also laid down guidelines in the year 2002. Insofar as Section 33B is concerned, it was struck down by this Court in the case of People's Union for Civil Liberties (PUCL) and Anr. v. Union of India and Anr. : (2003) 4 SCC 399.

16. The legal position is, thereafter, summarized in para 27, which becomes important for our purpose and, therefore, we produce the same hereunder:

27. What emerges from the above discussion can be summarized in the form of following directions:

(i) The voter has the elementary right to know full particulars of a candidate who is to represent him in the Parliament/Assemblies and such right to get information is universally recognized. Thus, it is held that right to know about the candidate is a natural right flowing from the concept of democracy and is an integral part of Article 19(1)(a) of the Constitution.

(ii) The ultimate purpose of filing of affidavit along with the nomination paper is to

effectuate the fundamental right of the citizens under Article 19(1)(a) of the Constitution of India. The citizens are supposed to have the necessary information at the time of filing of nomination paper and for that purpose, the Returning Officer can very well compel a candidate to furnish the relevant information.

(iii) Filing of affidavit with blank particulars will render the affidavit nugatory.

(iv) It is the duty of the Returning Officer to check whether the information required is fully furnished at the time of filing of affidavit with the nomination paper since such information is very vital for giving effect to the 'right to know' of the citizens. If a candidate fails to fill the blanks even after the reminder by the Returning Officer, the nomination paper is fit to be rejected. We do comprehend that the power of Returning Officer to reject the nomination paper must be exercised very sparingly but the bar should not be laid so high that the justice itself is prejudiced.

(v) We clarify to the extent that Para 73 of People's Union for Civil Liberties case (supra) will not come in the way of the Returning Officer to reject the nomination paper when affidavit is filed with blank particulars.

(vi) The candidate must take the minimum effort to explicitly remark as 'NIL' or 'Not Applicable' or 'Not known' in the columns and not to leave the particulars blank.

(vii) Filing of affidavit with blanks will be directly hit by Section 125A(i) of the RP Act. However, as the nomination paper itself is rejected by the Returning Officer, we find no reason why the candidate must be again penalized for the same act by prosecuting him/her.

18. The Appellant had not disclosed, in his nomination paper/affidavit, that he was in arrears in respect of two electricity meters standing in his name, in respect whereof electricity connection was given by the Maharashtra State Electricity Board (for short, 'MSEB'). The outstanding amount in

these two meters was Rs. 79,200/- and Rs. 66,250/- respectively. It was proved, on the basis of evidence led by the Respondent herein, that the aforesaid dues were outstanding against these two electricity connections. The defence of the Appellant, however, was that one electricity meter, which was in his residential bungalow, was defective and complaints in this behalf were made to MSEB from time to time and because of that dispute he was orally advised by the officials of MSEB not to pay the amount.

22. Bungalow No. 866 at Badlapur in the limits of Kulgaon-Badlapur Municipal Council stands in the name of Kamal Kishore Kathore, wife of the Appellant. At the time of filing the nomination, there were municipal dues in the sum of Rs. 3,465/-. Allegation of the first Respondent was that both the aforesaid informations were suppressed and not disclosed in the affidavit filed by the Appellant along with the nomination form. According to him, this was crucial information regarding immovable property owned by the Appellant's wife, suppression whereof amounted to filing a defective affidavit and such an affidavit was no affidavit in the eyes of law.

27. Here again, from the detailed discussion contained in the impugned judgment of the High Court, it becomes clear that by leading requisite and sufficient evidence, the first Respondent proved that wife of the Appellant owned the aforesaid vehicle and the particulars thereof were not disclosed. The defence of the Appellant was that he had mentioned the value thereof in his affidavit, but accepted that it was against column 'Self' and not in the independent column of his spouse. His defence is discussed and rejected by the High Court in the following manner:

89. On analysis of the pleadings, it follows that the Respondent admits that motor vehicle in question is owned by his wife. However, it is not his case that in the nomination form, he has disclosed the ownership of the said vehicle of his wife. Perhaps, the Respondent intends to suggest

that he has substantially complied with the requirements by disclosing the ownership of motor vehicle valued Rs. 5,50,000/- and that it was purchased against loan given by M & M Financial Services Ltd.

90. Before we deal with the ocular evidence of the parties, it will be useful to make reference to the details to be disclosed by the candidate as per the prescribed affidavit. The requirement is that the candidate should disclose the "details of the motor vehicles" owned and possessed by him, his wife and/or other dependent members of his family separately. The Respondent, however, against the said column has only mentioned figure of Rs. 5,50,000/- under the column 'Self', which gives an impression that the Respondent himself owns vehicle valued Rs. 5,50,000/- and nothing more. No details of the motor vehicle such as number of vehicle, the make, the model such as economic, luxury or the year of purchase and the like are disclosed so as to enable the voters to assess whether the details disclosed are correct or undervalued, including the legitimate means and capability of the candidate to possess such assets. As in the case of disclosure made by the Respondent in respect of buildings, in similar manner, the disclosure in respect of vehicle is also incomplete, vague and misleading. The candidate cannot get away with the explanation that he has disclosed some amount in one of the columns as sufficient or substantial compliance. The purpose of disclosure of assets (movable and immovable) and liabilities to be made by the candidate, is to educate the voters about the complete financial status of the candidate, which information also facilitates the voter to assess whether the assets (movable and immovable) declared by the candidate have been procured by him out of his legitimate and known source of income. The voters have a fundamental right to know and receive such information about the candidate before they take an informed decision to elect their candidate. As it is the fundamental right of the voters, there is corresponding duty on the candidate to disclose truthful and complete information regarding the assets

(movable and immovable) as per the prescribed affidavits which forms integral part of the nomination form.

RE - Non-disclosure of property purchased in the name of the firm

28. The first Respondent had alleged that the Appellant has a right, title and interest in land measuring 1330 sq.mts. being Survey No. 48, Hissa No. 9, Plot No. 2 and also in land admeasuring about 1292 sq.mts. being Survey No. 48, Hissa No. 9, Plot No. 3 at Mouza Kalyan, Taluka Ambernath, District Thane. These properties are purchased in the name of the partnership firm M/s. Padmavati Developers under agreement of development and sale. The Appellant was one of the partners in the said firm. However, the Appellant had not disclosed his interest in the aforesaid assets in the affidavit filed along with the nomination form. The defence of the Appellant in relation to this allegation was that he had retired from the partnership firm in the year 2003 and in his letter dated October 28, 2004 sent to the Returning Officer, he had stated that the aforesaid two properties do not belong to him. The High Court noted that admittedly there was no reference about the two properties in the affidavits filed along with the nomination form. Further, it was a common case that M/s. Padmavati Developers was formed as a partnership firm in the year 1995, of which the Appellant was one of the partners. There was also no dispute that the bank account was operated in the name of the said partnership firm and Appellant was one of the joint signatory. Thus, the only aspect which needed determination was as to whether the Appellant had retired from the said partnership firm in November 2003, as claimed by him. However, from the plethora of documentary evidence placed on record, the High Court returned a finding that those documents clearly show that the Appellant continued to remain an active partner even after 2003 and was, in fact, a partner on the date of filing of the nomination. Apart from various documents revealing and establishing this fact, most important document was the Deed of Dissolution of the partnership firm, which was dated January 11, 2005 and at the

time of evidence, the Appellant had admitted the contents thereof, as well as the signatures of the three partners appearing on that document.

29. The High Court summed up the decision on this aspect in the following manner:

24. On overall analysis of the evidence, I have no hesitation in concluding that the Petitioner has established the allegation that the Respondent continued to be partner of the partnership firm Padmavati Developers at least till December 2004. It is also matter of record and admitted position that neither the Respondent nor any other partner of Padmavati Developers caused to give public notice of the retirement of the partner or for that matter, intimation to the Registrar of Firms till January 2005. Obviously, intimation has been sent to the Registrar of Firms only after the institution and service of the present Election Petition, having realised the seriousness of the allegation. If so, it was obligatory on the part of the Respondent to disclose his interest in the properties purchased in the name of the said firm.

30. It would be pertinent to mention here that the first Respondent had alleged non-disclosure of many other assets, liabilities, etc. or suppression of other material information in the affidavits. However, apart from the aforesaid four non-disclosures, other allegations have not been accepted by the High Court. We would also like to mention at this stage itself that on all the four counts the High Court has recorded finding of facts, which are based on the evidence produced on record. As would be noted hereinafter, learned senior Counsel appearing for the Appellant did not even attempt to argue that these findings are wrong on facts. He only made legal submissions and his entire endeavour was that for non-disclosure of the aforesaid information, the High Court could not have held that the nomination was wrongly accepted and further that since there was a substantial compliance, there was no reason to set aside the election of the Appellant. On these aspects, the High Court had framed issues No. 7 and 8, which are as under:

(7) Does the Petitioner prove that the Respondent's Nomination Form is improperly accepted by the Returning Officer?

(8) Whether on account of improper acceptance of the nomination paper, the Election result is materially affected?

32. Issue No. 8 pertains to the question as to whether the election result was materially affected because of non-disclosure of the aforesaid information. The High Court took note of provisions of Section 100(1)(d)(i) and (iv) and discussed the same. Thereafter, some judgments cited by the Appellant were distinguished and deciding this issue against the Appellant, the High Court concluded as under:

137. In my opinion, it is not necessary to elaborate on this matter beyond a point, except to observe that when it is a case of improper acceptance of nomination on account of invalid affidavit or no affidavit filed therewith, which affidavit is necessarily an integral part of the nomination form; and when that challenge concerns the returned candidate and if upheld, it is not necessary for the Petitioner to further plead or prove that the result of the returned candidate has been materially affected by such improper acceptance.

138. The avowed purpose of filing the affidavit is to make truthful disclosure of all the relevant matters regarding assets (movable and immovable) and liabilities as well as criminal actions (registered, pending or in respect of which cognizance has been taken by the Court of competent jurisdiction or in relation to conviction in respect of specified offences). Those are matters which are fundamental to the accomplishment of free and fair election. It is the fundamental right of the voters to be informed about all matters in relation to such details for electing candidate of their choice. Filing of complete information and to make truthful disclosure in respect of such matters is the duty of the candidate who offers himself or who is nominated for election to represent the voters from that Constituency. As the candidate has to disclose this information on affidavit, the solemnity of affidavit cannot be

allowed to be ridiculed by the candidates by offering incomplete information or suppressing material information, resulting in disinformation and misinformation to the voters. The sanctity of disclosure to be made by the candidate flows from the constitutional obligation.

36. In view of the aforesaid, two facets of the issue, which require consideration, are as follows:

36.1 (i) Whether there is a substantial compliance in disclosing the requisite information in the affidavits filed by the Appellant along with the nomination paper?

36.2 (ii) Whether non-disclosure of the information on account of aforesaid four aspects has materially affected the result of the election?

37. We have already discussed in detail each item of non-disclosure as well as defence of the Appellant pertaining thereto. For the reasons recorded in detail at that stage by the High Court and stated above, with which we agree, we are of the opinion that its finding about nondisclosure of the information qua all the aspects is without blemish. There is a specific format in which the information is to be given, which was not adhered to.

39. Even if it is so, in respect of the aforesaid aspects, on other nondisclosures, the case of the Appellant has to fail. We find clear case of non-disclosure of bungalow No. 866 in the name of the Appellant's wife, which is a substantial lapse. So is the case about the nondisclosure of vehicle in the name of Appellant's wife. Likewise, nondisclosure of the Appellant's interest/share in the partnership firm is a very serious and major lapse. On all these aspects, we find that the defence/explanation furnished by the Appellant does not inspire any confidence. It is simply an afterthought attempt to wriggle out of the material lapse on the part of the Appellant in not disclosing the required information, which was substantial. We, therefore, are of the view that in the affidavits given by the Appellant along with the nomination form, material information about the assets was not disclosed and,

therefore, it is not possible to accept the argument of the Appellant that information contained in the affidavits be treated as sufficient/substantial compliance.

40. We have already reproduced above the relevant portions of judgments in the cases of Association for Democratic Reforms and People's Union for Civil Liberties and the guidelines issued by the Election Commission pursuant thereto. A conjoint and combined reading thereof clearly establishes that the main reason for issuing directions by this Court and guidelines by the Election Commission pursuant thereto is that the citizens have fundamental right under Article 19(1)(a) of the Constitution of India to know about the candidates contesting the elections and this is the primary reason that casts a solemn obligation on these candidates to furnish information regarding the criminal antecedents, educational qualifications and assets held by the candidate, his spouse and dependent children. It is on that basis that not only Election Commission has issued guidelines, but also prepared formats in which the affidavits are to be filed. As a fortiori, it follows that if the required information as per the said format in respect of the assets of the candidate, his wife and dependent children is not given, it would amount to suppression/nondisclosure.

41. It was argued that acceptance of nomination is as per Section 33 of the Act, which contains requirement for a valid nomination. Further Section 36(2) deals with rejection of nomination on grounds specified therein. It was the submission of the learned senior Counsel that at the time of scrutiny of the nomination under Section 36, nomination could be rejected only if any of the grounds stipulated in Sub-section (2) are satisfied and there cannot be any 'deemed' ground, which is not covered by Section 36(2) of the Act. Therefore, the Returning Officer had rightly accepted the nomination form as none of the grounds specified in Sub-section (2) of Section 36 were attracted. He further submitted that Sections 8A, 9, 9A, 10 and 10A provide disqualifications for Members of Parliament and State Legislature. As per the counsel, from the scheme of the Act it can be

seen that at the time of scrutiny of nomination, all that the Returning Officer is required to examine is as to whether the candidate suffers from any of the disqualifications mentioned in Section 8 to 10A of the Act and as to whether the nomination is in the form prescribed by Section 33 and accompanied by the documents mentioned in Sub-Sections 2 to 7 of Section 33 and whether it is accompanied by an affidavit prescribed by Rule 4A and the deposit required by Section 34 of the Act. Apart from the aforesaid, the Returning Officer is not empowered to reject the nomination on any other ground. He argued that the right of the Returning Officer to conduct a summary inquiry into the correctness or otherwise of the contents of the affidavit filed along with the nomination was expressly taken away as can be seen from the judgment of this Court in the case of People's Union for Civil Liberties. Having noted that the Returning Officer has no power to reject a nomination where false information is furnished or material information is suppressed, the Election Commission of India and Union of India have requested this Court to treat the same as equal to a blank affidavit, as noted in the case of Resurgence India.

42. It is difficult to accept the aforesaid submissions of the learned senior Counsel as that would amount to nullifying the effect of the judgments as well as guidelines issued by the Election Commission.

43. When the information is given by a candidate in the affidavit filed along with the nomination paper and objections are raised thereto questioning the correctness of the information or alleging that there is non-disclosure of certain important information, it may not be possible for the returning officer at that time to conduct a detailed examination. Summary enquiry may not suffice. Present case is itself an example which loudly demonstrates this. At the same time, it would not be possible for the Returning Officer to reject the nomination for want of verification about the allegations made by the objector. In such a case, when ultimately it is proved that it was a case of

non-disclosure and either the affidavit was false or it did not contain complete information leading to suppression, it can be held at that stage that the nomination was improperly accepted. Ms. Meenakshi Arora, learned senior Counsel appearing for the Election Commission, right argued that such an enquiry can be only at a later stage and the appropriate stage would be in an election petition as in the instant case, when the election is challenged. The grounds stated in Section 36(2) are those which can be examined there and then and on that basis the Returning Officer would be in a position to reject the nomination. Likewise, where the blanks are left in an affidavit, nomination can be rejected there and then. In other cases where detailed enquiry is needed, it would depend upon the outcome thereof, in an election petition, as to whether the nomination was properly accepted or it was a case of improper acceptance. Once it is found that it was a case of improper acceptance, as there was misinformation or suppression of material information, one can state that question of rejection in such a case was only deferred to a later date. When the Court gives such a finding, which would have resulted in rejection, the effect would be same, namely, such a candidate was not entitled to contest and the election is void. Otherwise, it would be an anomalous situation that even when criminal proceedings under Section 125A of the Act can be initiated and the selected candidate is criminally prosecuted and convicted, but the result of his election cannot be questioned. This cannot be countenanced.

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14. He has also contended in view of provisions of Section 33(A) of the Representation of the People Act, 1951 which reads as under:-

[33A. Right to information.—

1) A candidate shall, apart from any information which he is required to furnish, under this Act or the rules made thereunder,

in his nomination paper delivered under sub-section (1) of section 33, also furnish the information as to whether—

(i) he is accused of any offence punishable with imprisonment for two years or more in a pending case in which a charge has been framed by the court of competent jurisdiction;

(ii) he has been convicted of an offence [other than any offence referred to in sub-section (1) or sub-section (2), or covered in sub-section (3), of section 8] and sentenced to imprisonment for one year or more.

(2) The candidate or his proposer, as the case may be, shall, at the time of delivering to the returning officer the nomination paper under sub-section (1) of section 33, also deliver to him an affidavit sworn by the candidate in a prescribed form verifying the information specified in sub-section (1).

(3) The returning officer shall, as soon as may be after the furnishing of information to him under sub-section (1), display the aforesaid information by affixing a copy of the affidavit, delivered under sub-section (2), at a conspicuous place at his office for the information of the electors relating to a constituency for which the nomination paper is delivered.]

15. He contended that under the aforesaid Act, under Rule 4 and 4A of the Conduct of Election Rules, 1961 information were required to be disclosed. For ready reference, Rule 4 and 4A are reproduced as under:-

"4. Nomination paper.—Every nomination paper presented under sub-section (1) of section 33 shall be completed in such one of the Forms 2A to 2E as may be appropriate:

Provided that a failure to complete or defect in completing, the declaration as to symbols in a nomination paper in Form 2A or Form 2B shall not be deemed to be a defect of a

substantial character within the meaning of sub-section (4) of section 36.

4A. Form of affidavit to be filed at the time of delivering nomination paper.—The candidate or his proposer, as the case may be, shall, at the time of delivering to the returning officer the nomination paper under sub-section (1) of section 33 of the Act, also deliver to him an affidavit sworn by the candidate before a Magistrate of the first class or a Notary in Form 26.]”

16. Counsel for the appellants has mainly emphasized on the car owned by the husband of the RC which under the Motor Vehicles Act was required to be transferred within 14 days within the State and if it is outside the State, within three months and even on the date of evidence, when it was led, it was proved that the car stands in the name of the husband of the RC.

17. He mainly contended that the learned Single Judge has seriously committed jurisdictional error in allowing the writ petition as he contended that the learned Single Judge has found that no grounds of adequacy was pleaded that the allegations which were required to be made were not properly made.

18. He also relied upon Rule 80(d) of the Rules of 1994 which reads as under:-

80. Manner of challenging an election under the Act.— An election under the Act or under the Rules may be called in question by any candidate at such election by presenting a petition to the District Judge having jurisdiction within thirty days from the date on which the result of such election is declared, on any one or more of the following grounds :-

a.....

b.....

c.....

(d) that the result of the election in so far as it concerns the returned candidate was materially affected-

19. The partnership which was disclosed has not disclosed any interest of the RC for which he has emphasised para no.39 of the above referred judgment.

20. Even for inadequacy of the pleadings and other grounds, he has relied upon para no.55 of the above referred judgment and contended that the learned Single Judge has committed serious error in setting aside the judgment of the election tribunal.

21. Counsel for the appellant has strongly relied upon the following decisions:-

i. In Bhagwati Prasad vs. Shri Chandramaul AIR 1966 SC 735, it has been held as under :-

10. But in considering the application of this doctrine to the facts of the present case, it is necessary to bear in mind the other principle that considerations of form cannot over-ride the legitimate considerations of substance. If a plea is not specifically made and yet it is covered by an issue by implication, and the parties knew that the said plea was involved in the trial, then the mere fact that the plea was not expressly taken in the pleadings would not necessarily disentitle a party from relying upon it if it is satisfactorily proved by evidence.

The general rule no doubt is that the

relief should be founded on pleadings made by the parties. But where the substantial matters relating to the title of both parties to the suit are touched, though indirectly or even obscurely in the issue, and evidence has been led about them, then the argument that a particular matter was not expressly taken in the pleadings would be purely formal and technical and cannot succeed in every case. What the Court has to consider in dealing with such an objection is : did the parties know that the matter in question was involved in the trial, and did they lead evidence about it ?

If it appears that the parties did not know that the matter was in issue at the trial and one of them has had no opportunity to lead evidence in respect of it, that undoubtedly would be a different matter. To allow one party to rely upon a matter in respect of which the other party did not lead evidence and had had no opportunity to lead evidence, would introduce considerations of prejudice, and in doing justice to one party, the Court cannot do injustice to another.

- ii. In *Rupadhar Pujari vs. Gangadhar Bhatra* (2004) 7 SCC 654, it has been held as under :-

8. True it is that the relief clause in the election petition in the present case is not very happily worded. The election petitioner would have been better advised to specifically seek a declaration to the effect that he was elected. However, we cannot be oblivious of the fact that Panchayat elections are part of Gram Swaraj system. Most of the provisions relating to election and election petitions in the laws governing Panchayats are pari materia with the provisions contained in the Representation of the People Act 1951. Yet the procedural laws relating to Panchayat elections and election petitions

cannot be allowed to be interpreted with too much of rigidity and by indulging in hair-splitting. A recent decision by a Constitution Bench in *Sardar Amarjit Singh Kalra (Dead) by Lrs. and Ors. v. Pramod Gupta (Smt) (Dead) by Lrs. and Ors.*, : [2002]SUPP5SCR350 , once again reminds us to remember that laws of procedure are meant to regulate effectively, assist and aid the object of doing substantive and real Justice. Procedural laws must be liberally construed to really serve as handmaid of justice, make them workable and advance the ends of justice. Technical objections which tend to be stumbling blocks to defeat and deny substantial and effective justice should be strictly viewed for being discouraged, except where the mandate of the law inevitably necessitates it.

9. In the case at hand, there were only two candidates in the election fray. The respondent, though declared elected, was found by the learned Munsif to have been disqualified from contesting the election. He was, therefore, excluded from the contest. Deemingly there was only one candidate left, i.e. the appellant, and he was the only duly nominated candidate. There was no need to go for polling. Once he was found to be the only duly nominated candidate then he alone was to be declared elected. The constituency was not required to go to polls at all. The declaration of the appellant as duly elected candidate is the natural, obvious and inevitable consequence of his being the only duly nominated candidate. Ordinary, a plaintiff or petitioner should not be denied such relief to which he is found entitled on the facts established, simply because the relief clause is not very happily worded. The learned Munsif was, therefore, right in declaring the appellant as the one duly elected in

exercise of the powers conferred by Sub-section (2) of Section 38 of the Act consequent upon the election of the respondent, i.e. the only other candidate having been invalidated. In substance that was the relief which the election petitioner had sought for. The High Court has erred in interfering with and setting aside the well merited relief granted by the learned Munsif to the appellant herein.

iii. In *Krishnamoorthy vs. Sivakumar and Ors.* (2015) 3 SCC 467, it has been held as under :-

7. In this backdrop, the election of the first Respondent was sought to be declared to be invalid with certain other consequential reliefs. In the counter-statement filed by the elected candidate, a stand was put forth that the election Petitioner though was present at the time of scrutiny of the nomination papers, had failed to raise any objection and, in any case, he had mentioned all the necessary details in the nomination papers perfectly. It was further set forth as follows:

All the averments stated in the 3rd para of the petition is false and hereby denied. The averment stated that 1st Respondent had deliberately omitted to provide the details of charge sheets having been filed against him which have been on file in eight cases is false and hereby denied. It is humbly submitted that this Respondent has clearly mentioned about the case pending in Cr. No. 10/2001 pending before the JM No. 4 at page No. 2 in details of candidate. Therefore the above said averments are false, misleading and unsustainable.

iv. In *Mairembam Prithviraj and Ors. vs. Pukhrem Sharatchandra Singh and Ors.* AIR 2016 SC 5087, it has been held as under :-

21. The facts, in brief, of the case of Durai Muthuswami are that the Petitioner in the election petition contested in the election to the Tamil Nadu Legislative Assembly from Sankarapuram constituency. He challenged the election of the First Respondent on the grounds of improper acceptance of nomination of the returned candidate, rejection of 101 postal ballot papers, ineligible persons permitted to vote, voting in the name of dead persons and double voting. The High Court dismissed the election petition by holding that the Petitioner failed to allege and prove that the result of the election was materially affected by the improper acceptance of the nomination of the First Respondent as required by Section 100(1) (d) of the Act. The Civil Appeal filed by the Petitioner therein was allowed by this Court in Durai Muthuswami (supra) in which it was held as follows:

3. Before dealing with the question whether the learned Judge was right in holding that he could not go into the question whether the 1st Respondent's nomination has been improperly accepted because there was no allegation in the election petition that the election had been materially affected as a result of such improper acceptance, we may look into the relevant provisions of law. Under Section 81 of the Representation of the People Act, 1951 an election petition calling in question any election may be presented on one or more of the grounds specified in Sub-section (1) of Section 100 and Section 101. It is not necessary to refer to the rest of the section. Under Section 83(1)(a), insofar as it is necessary for the purpose of this case, an election petition shall contain a concise statement of the material facts on which the Petitioner relies. Under Section 100(1) if the High Court is of opinion--
(a) that on the date of his election a returned candidate was not qualified, or was disqualified, to be chosen to fill the seat under the Constitution or this Act
(b)-(c) * * *

(d) that the result of the election, insofar as it concerns a returned candidate, has been materially affected--

(i) by the improper acceptance of any nomination, or.

(ii)-(iii) * * *

the High Court shall declare the election of the returned candidate to be void. Therefore, what Section 100 requires is that the High Court before it declares the election of a returned candidate is void should be of opinion that the result of the election insofar as it concerns a returned candidate has been materially affected by the improper acceptance of any nomination. Under Section 83 all that was necessary was a concise statement of the material facts on which the Petitioner relies. That the Appellant in this case has done. He has also stated that the election is void because of the improper acceptance of the 1st Respondent's nomination and the facts given showed that the 1st Respondent was suffering from a disqualification which will fall Under Section 9-A. That was why it was called improper acceptance. We do not consider that in the circumstances of this case it was necessary for the Petitioner to have also further alleged that the result of the election insofar as it concerns the returned candidate has been materially affected by the improper acceptance of the 1st Respondent's nomination. That is the obvious conclusion to be drawn from the circumstances of this case. There was only one seat to be filled and there were only two contesting candidates. If the allegation that the 1st Respondent's nomination has been improperly accepted is accepted the conclusion that would follow is that the Appellant would have been elected as he was the only candidate validly nominated. There can be, therefore, no dispute that the result of the election insofar as it concerns the returned candidate has been materially affected by the improper acceptance of his nomination because but for such improper acceptance he would not have been able to stand for

the election or be declared to be elected. The Petitioner had also alleged that the election was void because of the improper acceptance of the 1st Respondent's nomination. In the case of election to a single-member constituency if there are more than two candidates and the nomination of one of the defeated candidates had been improperly accepted the question might arise as to whether the result of the election of the returned candidate had been materially affected by such improper reception. In such a case the question would arise as to what would have happened to the votes which had been cast in favour of the defeated candidate whose nomination had been improperly accepted if it had not been accepted. In that case it would be necessary for the person challenging the election not merely to allege but also to prove that the result of the election had been materially affected by the improper acceptance of the nomination of the other defeated candidate. Unless he succeeds in proving that if the votes cast in favour of the candidate whose nomination had been improperly accepted would have gone in the Petitioner's favour and he would have got a majority he cannot succeed in his election petition. Section 100(1)(d)(i) deals with such a contingency. It is not intended to provide a convenient technical plea in a case like this where there can be no dispute at all about the election being materially affected by the acceptance of the improper nomination. "Materially affected" is not a formula that has got to be specified but it is an essential requirement that is contemplated in this section. Law does not contemplate a mere repetition of a formula. The learned Judge has failed to notice the distinction between a ground on which an election can be declared to be void and the allegations that are necessary in an election petition in respect of such a ground. The Petitioner had stated the ground on which the 1st Respondent's election should be declared to be void. He had also given the material facts as required Under Section 83(1)(a). We are, therefore, of opinion that the

learned Judge erred in holding that it was not competent for him to go into the question whether the 1st Respondent's nomination had been improperly accepted. (Underlining ours)

22. It is clear from the above judgment that there is a difference between the improper acceptance of a nomination of a returned candidate and the improper acceptance of nomination of any other candidate. There is also a difference between cases where there are only two candidates in the fray and a situation where there are more than two candidates contesting the election. If the nomination of a candidate other than the returned candidate is found to have been improperly accepted, it is essential that the election Petitioner has to plead and prove that the votes polled in favour of such candidate would have been polled in his favour. On the other hand, if the improper acceptance of nomination is of the returned candidate, there is no necessity of proof that the election has been materially affected as the returned candidate would not have been able to contest the election if his nomination was not accepted. It is not necessary for the Respondent to prove that result of the election in so far as it concerns the returned candidate has been materially affected by the improper acceptance of his nomination as there were only two candidates contesting the election and if the Appellant's nomination is declared to have been improperly accepted, his election would have to be set aside without any further enquiry and the only candidate left in the fray is entitled to be declared elected. The judgment of this Court in Durai Muthuswami (supra) was referred to in Jagjit Singh v. Dharam Pal Singh : 1995 Supp (1) SCC 422 page 429 in which it was held as follows:

21. The trial Judge has held that since there is no averment in the petition that the result of the election was materially affected by improper rejection or acceptance of votes, it is devoid of cause of action. We are unable to agree that the

absence of such an averment in the facts of this case is fatal. As pointed out by this Court, there may be cases where the obvious conclusion to be drawn from the circumstances is that the result of the election has been materially affected and that Section 100(1)(d) of the Act is not intended to provide a convenient technical plea in a case where there can be no dispute at all about the result of the election being materially affected by the alleged infirmity. (See: *Durai Muthuswami v. N. Nachiappan* : (1973) 2 SCC 45 : (1974) 1 SCR 40].) In the present case, the Appellant in the election petition has stated that he has lost by a margin of 80 votes only. From the various averments in the election petition it was evident that the number of valid votes of the Appellant which are alleged to have been improperly rejected is much more than 80. From the averments contained in the election petition it is thus obvious if the Appellant succeeds in establishing his case as set out in the election petition the result of this election, insofar as it concerns the returned candidate, would be materially affected.

It was held by this Court in *Vashist Narain Sharma v. Dev Chandra*, reported in : 1955 (1) SCR 509 as under:
9. The learned Counsel for the Respondents concedes that the burden of proving that the improper acceptance of a nomination has materially affected the result of the election lies upon the Petitioner but he argues that the question can arise in one of three ways:
(1) where the candidate whose nomination was improperly accepted had secured less votes than the difference between the returned candidate and the candidate securing the next highest number of votes,
(2) where the person referred to above secured more votes, and
(3) where the person whose nomination has been improperly accepted is the returned candidate himself.
It is agreed that in the first case the result of the election is not materially affected because if all the wasted votes are added

to the votes of the candidate securing the highest votes, it will make no difference to the result and the returned candidate will retain the seat. In the other two cases it is contended that the result is materially affected. So far as the third case is concerned it may be readily conceded that such would be the conclusion. But we are not prepared to hold that the mere fact that the wasted votes are greater than the margin of votes between the returned candidate and the candidate securing the next highest number of votes must lead to the necessary inference that the result of the election has been materially affected. That is a matter which has to be proved and the onus of proving it lies upon

the Petitioner. It will not do merely to say that all or a majority of the wasted votes might have gone to the next highest candidate. The casting of votes at an election depends upon a variety of factors and it is not possible for anyone to predicate how many or which proportion of the votes will go to one or the other of the candidates. While it must be recognised that the Petitioner in such a case is confronted with a difficult situation, it is not possible to relieve him of the duty imposed upon him by Section 100(1)(c) and hold without evidence that the duty has been discharged. Should the Petitioner fail to adduce satisfactory evidence to enable the Court to find in his favour on this point, the inevitable result would be that the Tribunal would not interfere in his favour and would allow the election to stand.(Underlining ours).

This Court in *Kisan Shankar Kathore v. Arun Dattatray Sawant* (supra) dealt with a situation similar to that of this case. In that case, the election of the returned candidate was successfully challenged on the ground of non-disclosure of material information. The appeal filed by the returned candidate was dismissed by this Court by observing as follows: Once it is found that it was a case of improper acceptance, as there was misinformation or suppression of material information, one can state that question of

rejection in such a case was only deferred to a later date. When the Court gives such a finding, which would have resulted in rejection, the effect would be same, namely, such a candidate was not entitled to contest and the election is void.

21. It is also alleged that the bank account details were not correctly disclosed and the bank account of the partnership and the trust where they have substantial control, were not disclosed in the nomination papers.

22. Counsel for another appellant Mr. Pareek has contended that the candidate has contested the election for ward no.10 and elected from ward no.10 and the other appellant has lost from ward no.10 and the trial court while considering the issue no.14 recorded the following findings:-

66- याचिकाकर्ता ने अपनी साक्ष्य में यह कथन किया है कि विपक्षी संख्या 1 से 3 ने मिलीभगत कर याचिकाकर्ता द्वारा स्वयं के पक्ष में दिये गये वोट को भी विपक्षी के मतों में जोड़ दिया। साक्ष्य में यह कथन किया है कि मैंने स्वयं को मतदान किया था और कुछ सदस्यों ने भी मुझे मेरे पक्ष में मतदान करने बाबत अवगत कराया फिर भी गणना में मुझे एक भी मत देना घोषित नहीं किया गया है। यह परस्पर मिलीभगत का परिणाम है। जिला निर्वाचन अधिकारी ने प्रारम्भ से ही विपक्षी के पक्ष में कार्य किया है इत्यादि कथन किये हैं। इन कथनों के सम्बन्ध में कुछ प्रतिपरीक्षा में भी प्रश्न पूछे गये हैं। इसके संबंध में विपक्षी संख्या 2 व 3 ने कोई साक्ष्य पेश नहीं की है कि विवादों के किये गये विवेचन के अनुसार स्थिति यह है कि विपक्षी सं.1 का नामांकन गलत रूप से स्वीकार किया गया। उसके द्वारा नामांकन में अपनी चल-अचल सम्पत्तियों का विवरण पूर्ण रूप से न देकर चल अचल सम्पत्तियों आदि को छुपाया गया। चल अचल सम्पत्तियों के विवरण त्रुटिपूर्ण दिये गये और ऊपर किये गये विवेचन के अनुसार सदस्यता हेतु नामांकन विपक्षी सं. 1 का अस्वीकार किये जाने योग्य था और यदि वह नामांकन अस्वीकार होता तो निश्चित रूप से याचिकाकर्ता एक मात्र प्रत्याशी जिला प्रमुख के पद हेतु होती और निर्विरोध निर्वाचित हो जाती। विपक्षी को 34 मत मिलने से यह नहीं कहा जा सकता कि याचिकाकर्ता चुनाव में रिटायर हो गई।

किसी प्रत्याशी को यदि कोई मत प्राप्त न हो अथवा प्राप्त मत रद्द या प्रतिक्षेपित हो जावे तो उसे रिटायर प्रत्याशी नहीं माना जा सकता। विपक्षी की ओर से ऐसी कोई साक्ष्य नहीं दी गई है कि याचिकाकर्ता ने स्वयं अपना मत भी अपने पक्ष में न दिया हो और जब आरम्भिक रूप से विपक्षी की जिला परिषद की सदस्यता ही वैध प्रतीत नहीं होती है तो जिला प्रमुख के निर्वाचन में चाहे उसे कितने ही मत प्राप्त हो गये हों, उसका निर्वाचन वैध नहीं कहा जा सकता और ऐसी कोई विधिक स्थिति भी प्रकट नहीं की गई है कि याचिकाकर्ता को ऐसी याचिका दायर करने में कोई विधिक बाधा हो। उपरोक्त विवेचन अनुसार विवाद्यक संख्या 14 विपक्षी के विरुद्ध व प्रार्थिया के पक्ष में निर्णीत किया जाता है।

23. While considering issue no.18, the tribunal observed as under:-

62. उपरोक्त परस्पर विरोधी तर्कों पर विचार किया गया है। इन विवाद्यकों में वर्णित आपत्तियां पूर्व में ऊपर किये गये विवाद्यकों के विवेचन में समाहित हो चुकी है और विपक्षी द्वारा सदस्य पद हेतु भरे गये अपने नामांकन में संलग्न प्रपत्रों में चल अचल सम्पत्तियां प्रकट नहीं करना और तथ्य छुपा लिये जाना निर्णीत किया जा चुका है। ऐसी स्थिति में उन तथ्यों पर पुनः विवेचन आवश्यक नहीं है। विधिक स्थिति के अनुसार धारा 43 राजस्थान पंचायतीराज अधिनियम व पंचायती राज निर्वाचन नियम के नियम 80 के अंतर्गत जो प्रावधान किये गये हैं, वे इस प्रकार ह:-

43. Determination of dispute as to elections.- (1) An election under this Act or the rules made thereunder may be called in question by any candidate at such election by presenting in the prescribed manner to the District Judge having jurisdiction a petition in this behalf on the prescribed grounds and within the prescribed period:

Provided that an election petition presented as aforesaid may, for the reasons to be recorded in writing, be transferred by the District Judge for hearing and disposal to a Civil Judge or

Additional Civil Judge (Senior Division) subordinate to him.

(2) A petition presented under subsection (1) shall be heard and disposed of in the prescribed manner and the decision of the Judge thereon shall be final.

80. Manner of challenging an election under the Act.-An election under the Act or under the Rules may be called in question by any candidate at such election by presenting a petition to the District Judge having jurisdiction within thirty days from the date on which the result of such election is declared, on any one or more of the following grounds :-

(a) that on the date of election, a returned candidate was not qualified or was disqualified, for such election, or

(b) that any corrupt practice was committed by a candidate or by any other person with the consent or connivance of the candidate, or

(c) that any nomination was improperly rejected, or

(d) that the result of the election in so far as it concerns the returned candidate was materially affected-

(I) by the improper acceptance of any nomination, or

(ii) by any corrupt practice committed in the interest of the candidate by a person other than that candidate or by a person acting with the consent or connivance of such candidate, or

(iii) by improper reception, refusal or rejection of any vote or the reception of any vote which was void, or

(iv) by any non-compliance with the provisions of the Act or of these rules, or

(e) that in fact the petitioner or some other candidate received a majority of the valid votes, or

(f) that, but for votes obtained by the returned candidate by corrupt practices, the petitioner or some other candidate would have obtained a majority of the valid votes.

64- विधि की स्थिति के अनुसार जिला प्रमुख के निर्वाचन में अभ्यर्थी होने से पूर्व किसी व्यक्ति को जिला परिषद् के किसी निर्वाचन क्षेत्र का सदस्य होना आवश्यक है और फिर सदस्यों में से ही जिला प्रमुख का निर्वाचन किया जाता है। तो प्रारंभिक तौर पर जो नामांकन पत्र व संलग्न उपाबन्ध इत्यादि हैं वे महत्वपूर्ण हो जाते हैं और किसी अभ्यर्थी को समस्त विवरण उनमें अंकित करने होते हैं, निर्वाचन नियम 59 में पंचायत समिति के प्रधान के निर्वाचन सम्बन्धी प्रावधान हैं और नियम 62 में प्रमुख और उप प्रमुख निर्वाचन सम्बन्धी प्रावधान है। नियम 62 के अनुसार नियम 59 में वर्णित प्रावधान ही प्रमुख के निर्वाचन पर लागू हैं। नामांकन सम्बन्धी फार्म निर्वाचन नियमों में फार्म पअ के रूप में उपलब्ध है। इसमें पअ/ठद्ध अभ्यर्थी की घोषणा है कि मैं पंचायती राज अधिनियम के अंतर्गत किन्हीं भी निर्योग्यताओं के अधीन नहीं हूँ और उक्त अधिनियम के उपलब्धों के अधीन उक्त स्थान के लिए अभ्यर्थी होने के लिए अर्हित हूँ तो यह आरंभिक प्रपत्र है वही महत्वपूर्ण है और नियमानुसार जिला प्रमुख के लिए भरे गये नामांकन का भी मूल आधार यही प्रपत्र व द घोषणाएं रहती है और जहां तक जेबी मसमबजपवदर का प्रश्न है तो ऐसी तंग व्याख्या नहीं की जा सकती कि केवल उस वार्ड का प्रत्याशी ही जिला प्रमुख के निर्वाचन को चुनौति दे सकता है और इसी प्रकार की आपति पूर्व में आदेश 7 नियम 11 सिविल प्रक्रिया के आवेदन में उठायी गई थी। तब बाद सुनवाई दिनांक 5.3.16 को न्यायालय द्वारा आदेश दिया गया था कि याचिकाकर्ता को याचिका पेश करने का वाद हेतुक प्राप्त है क्योंकि वह चुनाव में अभ्यर्थी रही है। इन स्थितियों में विपक्षी के तर्क चलने योग्य नहीं हैं और पूर्व विवादकों में जैसा कि निर्धारित किया जा चुका है कि नामांकन पत्र और उसके साथ संलग्न उपाबन्ध आदि में विपक्षी ने अपनी चल अचल सम्पत्तियों के पूर्ण विवरण नहीं दिये और दस्तावेजों से यह भी प्रकट है कि विपक्षी संख्या 1 ग्राम पिदावली की साधारणतया स्थायी निवासी सिद्ध नहीं हुई है और स्नेहलता वाले प्रकरण में सुनिश्चित किये गये उपरोक्त विवादकों में ये प्रश्न विस्तार ने विवेचित कर निर्णीत किया जा चुका है कि विपक्षी के नामांकन पत्र में सही जानकारीयों उपलब्ध नहीं करायी गई है और तथ्य छिपा लिये गये हैं। उससे भिन्न कोई स्थिति प्रकट नहीं हो रही है। तो विवेचन अनुसार विवादक संख्या 11 व 18 याचिकाकर्ता के पक्ष में और विपक्षी के विरुद्ध निर्णीत किये जाते हैं।

24. He also contended in view of Rule 87 of the Rules of 1994 which reads as under:

87. Order of the Court.- (1) Upon the conclusion of the hearing the Judge shall make an order :-

- (a) dismissing the petition, or
- (b) declaring the election of all or any of the returned candidates to be void, or
- (c) declaring the election of all or any of the returned candidates to be void and the petitioner or any other candidate to have been duly elected.
- [(d) where any charge is made in the petition of any corrupt practice having been committed at the election, record -
 - (i) a finding whether any corrupt practice has or has not been proved to have been committed at the election, and the nature of that corrupt practice; and
 - (ii) the names of all persons, if any, who have been proved at the trial to have been guilty of any corrupt practice and the nature of that practice;

Provided that a person who is not a party to the petition shall not be named in the order under sub-clause (ii) of clause (d) above, unless - (i) he has been given notice to appear before the court and to show cause why he should not be so named; and

(ii) if he appears in pursuance of the notice, he has been given an opportunity of cross examining any witness who has already been examined by the court and has given evidence against him, of calling evidence in his defence and of being heard.]

(2) The Judge, after pronouncing the order made under sub-rule (1), shall send a copy thereof to the District Election Officer (Panchayats) for taking further necessary action in pursuance thereof.

25. He contended that with regard to cause of insufficient time, she could not canvass properly and therefore she has lost. He contended that sufficient time would have been granted to contest the election and that has materially affected the election.

26. Counsel for the respondent-original petitioner before the learned Single Judge and original RC has contended that the election law is a special law and special statute and while considering the election matter, the court has to consider very precisely the pleadings and the documents which are on record all throughout.

27. It is contended that appellant in the pleadings has used word corrupt practice (भ्रष्ट आचरण) and he has taken us to the different parts of the judgment of the learned Single Judge but we are not reproducing the same however, we have gone through the language of (भ्रष्ट आचरण) which has been referred.

28. He further contended in view of requirement under Rule 80 of the Rules of 1994 which is reproduced above. He further contended that while considering the election petition under Rule 80, the court has to consider how the election petition is to be preferred and requirements under Rule 80 are to be fulfilled.

29. He further contended that requirement of Rule 80 was not fulfilled when allegation is of corrupt practice which has to be concise in facts and materially record the established averments made. It is also contended that result of the election was declared

on 6.2.2015 and president election for ward no.10 was held on 7.2.2015.

30. He also taken us to the Rule 25 to 27 and much emphasis has been placed on Rule 27 where an opportunity is to be given to every candidate to rectify his mistake. Then he has taken us to Section 4A of the Representation of People Act, 1950 and form filled thereunder being form no.26 and contended that the requirement under the Representation of the People Act and Rajasthan Panchayati Rules are different and invited our attention to the guidelines issued in the case of Krishan Shanker Kathore (supra).

31. He has also taken us to the guidelines issued by the State Election Commission, Rajasthan wherein Clause 4 provides as under:-

(4.) अभ्यर्थी व उसके पति/पत्नि व आश्रितों की सम्पत्ति का ब्यौरा।

उपरोक्त चार बिन्दुओं के प्रथम तीन बिन्दू अभ्यर्थी की पात्रता परीक्षण के लिए भी आवश्यक है और उपरोक्त प्रथम तीन बिन्दुओं यानि बिन्दु सं. (i), (ii) एवं (iii) के संबंध में यदि आपको कोई अन्यथा तथ्य ज्ञात होते हैं या कोई आपत्ति पेश होती है तो आप उनकी संक्षिप्त जांच नाम निर्देशन पत्र की संविक्षा के समय कर सकते हैं ताकि अभ्यर्थी की पात्रता का परीक्षण हो सके लेकिन उपरोक्त में बिन्दू सं. 4 पञ्चम यानि सम्पत्ति के ब्यौरे के संबंध में अभ्यर्थी के द्वारा जो भी कोई सूचना दी जाये उसके संबंध में जांच करने की कोई आवश्यकता नहीं है क्योंकि यह सूचना पात्रता परीक्षण के लिए नहीं है केवल आम जनता की जानकारी के लिए है।

32. He further contended that the requirement regarding property and other is only for the purpose of verification and is only for information to public at large.

33. He has taken us to the reply filed to the election petition wherein it has been specifically averred as under:-

उत्तरदाता ने भारतीय जनता पार्टी के प्रत्याशी के रूप में नामांकन प्रस्तुत किया था शेष तथ्य गलत अंकित किये गये हैं उत्तरदाता का नामांकन पत्र विधिवत रूप से स्वीकार किया गया है नामांकन स्वीकार करने में कोई अनियमितता कारित नहीं की गई है। इसके अतिरिक्त याची ने तथ्यों का स्पष्ट उल्लेख नहीं किया है तथा सारभूत तथ्यों के समावेश का अभाव है।

याची ने यह भी स्पष्ट नहीं किया है कि इस सब के कारण याची का चुनाव तात्त्विक रूप से किस प्रकार प्रभावित हुआ है और मतदाताओं पर इसका किसी प्रकार का प्रभाव पड़ा है, उपरोक्त के अभाव में वर्णित तथ्य याचिका के लिए वेमानी है शेष तथ्य उत्तरदाता को जानकारी से परे हैं।

16. यह है कि याची ने अपनी याचिका में मैटीरियल फैक्ट का खुलासा नहीं किया है तथा यह भी अंकित नहीं किया है कि इस सब के उपरान्त भी चुनावों परिणाम सारभूत रूप से प्रभावित हुए हैं उपरोक्त के अभाव में याचिका खारिज किये जाने योग्य है।

17. यह है कि याची को कोई Triable cause of action उत्पन्न नहीं हुआ है।

34. He contended that allegation of lack of material facts and malpractice are specifically dealt with in reply which reads as under:-

यह कि मैं इसके नीचे मेरी, मेरे पति/पत्नी और आश्रितों की आस्तियों (स्थावर, जंगम, बैंक अतिशेष इत्यादि) का बयौरा दे रहा हूँ :-

चल आस्तियों (सम्पतियों):-

1. नगद व बैंकों में जमा राशि-

स्वयं - 11.50 लाख

पति - 13.25 लाख

2. कार स्वयं के नाम— 1.50 लाख
3. विनियोग चन्द्रवती होस्पीलिटि ट्यूरिज्म
स्वयं के नाम— 1.75 करोड
पति के नाम — 2.86 करोड
4. स्वर्ण एवं चांदी आभूषण
स्वयं के पास — 10 लाख का मूल्य
5. शेयर एवं म्यूचुअल फंड—
स्वयं के नाम — 2.00 लाख

स्थावर आस्तियों का ब्यौरा:—

:- संयुक्त स्वामित्व की सीमा को उपदर्शित करने वाली संयुक्त स्वामित्व में सम्पतियां भी उपदर्शित की जानी चाहिए।

क्र. सं.	विवरण	स्वयं	स्वयं के नाम	स्वयं के नाम	पति के नाम	पति के नाम
1.	कृषि भूमि— वजीदपुर —अवस्थिति (अवस्थितियां) —सर्वेक्षण संख्या (संख्याएं) —सीमा (कुल माप) —वर्तमान बाजार मूल्य	3.25 एकड 3.25 एकड 6 करोड	कृषि भूमि रंगपुरी दिल्ली 1/2 बीघा 20 लाख रू.	कृषि भूमि ग्राम रवता नई दिल्ली 3.75 एकड 8 करोड रू.	कृषि भूमि रंगपुरी नई दिल्ली 1/2 बीघा 20 लाख रू	कृषि भूमि ग्रा. पिदासली भरतपुर 7 बीघा 10 लाख रू
2.	गैर कृषि भूमि —अवस्थिति (अवस्थितियां) —सर्वेक्षण संख्या (संख्याएं) —सीमा (कुल माप) —वर्तमान बाजार मूल्य					
3.	भवन वाणिज्यिक और आवासीय —अवस्थिति (अवस्थितियां) —सर्वेक्षण/मकान संख्याएं —सीमा (कुल माप)	1.मकान चित्रकूट जयपुर 2 करोड 2. दुकान	3. भूमि कनवटी श्रीनगर भरतपुर कीमत 1 करोड रू.		1. प्लॉट चित्रकूट जयपुर कीमत—2 करोड 2. दुकान नीलकण्ड नई	

	—वर्तमान बाजार मूल्य	रोहिणी नई दिल्ली 10 लाख रु.			दिल्ली कीमत— 10 लाख रु.	
4.	मकान/अपार्टमेन्ट इत्यादि —अवस्थिति (अवस्थितियां) —सर्वेक्षण/मकान संख्या (संख्याएं) —सीमा (कुल माप) —वर्तमान बाजार मूल्य	1. भवन गुडगांव कीमत— 1.50 करोड 2. प्लॉट रोहिणी नई दिल्ली कीमत — 2 करोड	3. प्लैट रोहिणी नं. दिल्ली कीमत एक करोड 4. प्लैट द्व ारिका नं. दिल्ली 1.25 करोड रु		पति के नाम 1. प्लॉट द्वारिका नई दिल्ली कीमत—1 करोड 2. प्लैट शक्ति अपार्टमेन्ट दिल्ली कीमत— 1 करोड 3. प्लैट बुकिंग राशि 1.10 करोड	
5.	अन्य (जैसे सम्पत्ति में हित)					

35. He has also taken us to letter dt. 19.1.2015 (Annexure-3) to contend that there is no lack of material fact.

36. He has further contended in view of Rule 80 read with Section 27 and the requirement under clause D that the result of the election in so far as it concerns the returned candidate was materially affected and issue was also framed.

37. He has also taken us to the property being held by RC in survey no.716 & 718 where one of the property is taken for the road and other is taken for the well and so far she is not supposed to disclose and disclosure which has been made has not materially effected the result of the election.

38. He further contended that voter list being a final having voters name at two places is not prohibited. In support of his

contention, he relied on Rule 10 & 11 of the Rules of 1961 which reads as under:-

10. Preparation of list of contesting candidates.—

(1) The list of contesting candidates referred to in subsection (1) of section 38 shall be in Form 7A or Form 7B as may be appropriate and shall contain the particulars set out therein and shall be prepared in such language or languages as the Election Commission may direct.

4 * * * * *

(3) If the list is prepared in more languages than one, the names of candidates therein shall be arranged alphabetically according to the script of such one of those languages as the Election Commission may direct.

(4) At an election in a parliamentary or assembly constituency, where a poll becomes necessary, the returning officer shall consider the choice of symbols expressed by the contesting candidates in their nomination papers and shall, subject to any general or special direction issued in this behalf by the Election Commission,—

(a) allot a different symbol to each contesting candidate in conformity, as far as practicable, with his choice; and

(b) if more contesting candidates than one have indicated their preference for the same symbol decide by lot to which of such candidates the symbol will be allotted.

(5) The allotment by the returning officer of any symbol to a candidate shall be final except where it is inconsistent with any directions issued by the Election Commission in this behalf in which case the Election Commission may revise the allotment in such manner as it thinks fit.

(6) Every candidate or his election agent shall forthwith be informed of the symbol allotted to the candidate and be supplied

with a specimen thereof by the returning officer.

[11. Publication of list of contesting candidates and declaration of result in uncontested election.—(1) The returning officer shall, immediately after its preparation, cause a copy of the list of contesting candidates to be affixed in some conspicuous place in his office and where the number of contesting candidates is equal to, or less than, the number of seats to be filled, he shall, immediately after such affixation, declare under sub-section (2) or as the case may be, sub-section (3) of section 53 the result of the election in such one of the Forms 21 to 21B as may be appropriate and send signed copies of the declaration to the appropriate authority, the Election Commission and the chief electoral officer.

(2) If a poll becomes necessary under sub-section (1) of section 53, the returning officer shall supply a copy of the list of contesting candidates to each such candidate or his election agent, and then shall also publish the list in the Official Gazette.]

39. The emphasis is made on Ex.21 where the vehicle was transferred. It is true that Mr. Mathur contended that under the Motor Vehicles Act, if it is taken the property, the car may not have been transferred but when the RC has gone to fill the form to best of her knowledge, the property, she has already received and amount of the car should have been disclosed therefore, if the car is shown in her ownership, it was difficult to explain the amount received for the car which was already disposed of in November, 2011. Therefore, to the best of her knowledge, she has not disclosed the car owned by her husband otherwise, the bank balance and everything as established by the certificate of the

bank manager would clearly establish that the balance which was available in the bank was telling with the details given on page no.112-113 and Ex.21 as reproduced above clearly established her plea that car is no longer is with them.

40. The evidence which has been brought on record was not adequate and reliable.

41. In that view of the matter, he contended that the learned Single Judge has not committed any error in allowing the writ petition. The amount which has not been disclosed in one of the account was not extra account where it was made to believe that they have no control over the account and it has to be invested in the immovable property, therefore, it has not been disclosed.

42. He further contended that the learned Single Judge has rightly held that the evidence was without any averments before the trial court.

43. Counsel for the respondent has relied upon the following decisions:-

i. In *Ananga Uday Singh Deo vs. Ranga Nath Mishra and ors.* reported in 2002 (1) SCC 499, it has been held as under:-

39. As already noticed, there was no pleading at all, except some vague assertion in the grounds, with regard to the allegation of corrupt practice relating to alleged bribery indulged by respondent No.1. No issue had been framed, as rightly none could be framed in that respect on the basis of vague and incomplete pleadings. The learned designated Judge, however, permitted evidence to be led during the trial by the appellant, relating to the allegations of bribery. No such evidence

could have been permitted to be led. The learned designated Judge appears to have ignored salutary principles that evidence can only be permitted to be led on a plea-properly raised and issue framed. A designated Judge trying an election petition must be careful to see that irrelevant, impermissible and inadmissible evidence is not allowed to be brought on the record. Let alone allowing evidence to be led, for which there were no pleadings, even respondent No.1 was subjected to unnecessary cross-examination on the allegations of bribery, which of course he stoutly denied. The evidence led in the case was inadmissible and should have been excluded and not allowed to form a part of the record. The designated Judge trying the election petition appears to have lost control over the proceedings and conducted the trial of the election petition in a manner not acceptable in law. In so far as the allegations relating to the charge of horse trading and bribery are concerned, we must in fairness to Mr. P.N. Lekhi, learned senior counsel appearing for the appellant, record that he did not pursue this charge before us any further.

- ii. In *Harkirat Singh vs. Amrinder Singh* reported in (2005) 13 SCC 511, it has been held as under:-

49. In the leadings case of *Phillips v. Phillips Cotton, L.J.* stated:

"What particulars are to be stated must depend on the facts of each case. But in my opinion it is absolutely essential that the pleading, not to be embarrassing to the defendants, should state those facts which will put the defendants on their guard and tell them what they have to meet when the case comes on for trial."

50. In *Bruce v. Odhams Press Ltd.*, (1936) 1 KB 697 : (1936) 1 All ER 287, Scott, L.J. referring to *Phillips v. Phillips* observed:

"The cardinal provision in Rule 4 is that the statement of claim must state the material facts. The word 'material' means necessary for the purpose of formulating a complete cause

of action; and if any one 'material' statement is omitted, the statement of claim is bad; it is 'demurrable' in the old phraseology, and in the new is liable to be 'struck out' under R.S.C. Order 25 Rule 4 (see *Phillips v. Phillips*); or 'a further and better statement of claim' may be ordered under Rule 7."

51. A distinction between 'material facts' and 'particulars', however, must not be overlooked. 'Material facts' are primary or basic facts which must be pleaded by the plaintiff or by the defendant in support of the case set up by him either to prove his cause of action or defence. 'Particulars', on the other hand, are details in support of material facts pleaded by the party. They amplify, refine and embellish material facts by giving distinctive touch to the basic contours of a picture already drawn so as to make it full, more clear and more informative. 'Particulars' thus ensure conduct of fair trial and would not take the opposite party by surprise

54. In connection with election matters, this Court has considered the question in several cases. In *Balwan Singh v. Lakshmi Narain & Ors.*, 1960 (3) SCR 91 : AIR 1960 SC 770, in an election petition, an allegation of corrupt practice of hiring or procuring vehicles by returned candidate had been made. It was contended on behalf of the respondent that full particulars as to contract of hiring vehicles had not been set out in the election petition. The petition was, therefore, liable to be dismissed. The Constitution Bench of this Court was called upon to consider the requirement of [Sections 83](#) and [123](#) of the Act in the light of the allegation in the election petition. Speaking for the majority, Shah, J. (as his Lordship then was) observed that neither in the petition as originally filed nor as amended, the date and place of hiring of vehicle alleged to have been used for conveying the voters, and the names of the persons between whom the contract of hiring was settled were set out. The question, however, was whether the election petition was liable to be rejected because it did not set forth particulars of date and place of hiring the vehicle alleged to have been used in conveying

voters? The Court answered the question in the negative and stated;

"The corrupt practice being the hiring or procuring of a vehicle for the conveyance of the electors, if full particulars of conveying by a vehicle of electors to or from any polling station are given, [Section 83](#) is duly complied with, even if the particulars of the contract of hiring, as distinguished from the fact of hiring, are not given. Normally, the arrangement for hiring or procuring a vehicle, is within the special knowledge of the parties to that agreement and it is difficult to assume that it is intended to require the petitioner in an election dispute to set out the particulars of facts within the special knowledge of the other party, and expose the petition to a penalty of dismissal if those particulars could not be given. If particulars in support of the plea of the vehicle being hired or procured by the candidate or his agent or by another person was used for conveying voters to or from the polling station are set out, failure to set out particulars of the contract of hiring or arrangement of procuring will not render the petition defective".

55. The Court proceeded to observe:

"The practice to be followed in cases where insufficient particulars of a corrupt practice are set forth in an election petition is this. An election petition is not liable to be dismissed in limine merely because full particulars of a corrupt practice alleged in the petition, are not set out. Where an objection is raised by the respondent that a petition is defective because full particulars of an alleged corrupt practice are not set out, the Tribunal is bound to decide whether the objection is well founded. If the Tribunal upholds the objection, it should give an opportunity to the petitioner to apply for leave to amend or amplify the particulars of the corrupt practice alleged; and in the event of noncompliance with that order the Tribunal may strike out the charges which remain vague. Insistence upon full particulars of corrupt practices is undoubtedly of paramount

importance in the trial of an election petition, but if the parties go to trial despite the absence of full particulars of the corrupt practice alleged, and evidence of the contesting parties is led on the plea raised by the petition, the petition cannot thereafter be dismissed for want of particulars, because the defect is one of procedure and not one of jurisdiction of the Tribunal to adjudicate upon the plea in the absence of particulars".

iii. In, *Virender Nath Gautam vs. Satpal Singh and Ors.*, (2007)

3 SCC 617, it has been held as under :-

50. There is distinction between *facta probanda* (the facts required to be proved, i.e. material facts) and *facta probantia* (the facts by means of which they are proved, i.e. particulars or evidence). It is settled law that pleadings must contain only *facta probanda* and not *facta probantia*. The material facts on which the party relies for his claim are called *facta probanda* and they must be stated in the pleadings. But the facts or facts by means of which *facta probanda* (material facts) are proved and which are in the nature of *facta probantia* (particulars or evidence) need not be set out in the pleadings. They are not facts in issue, but only relevant facts required to be proved at the trial in order to establish the fact in issue.

53. On an additional ground also, the order of the High Court is liable to be set aside. All allegations in Para 8 of the Election Petition, as also sub-paras (i) to (iv) of para 8 relate to improper and illegal reception and acceptance of votes and the election-petitioner has challenged the election of the returned candidate on that ground and not on the ground of 'corrupt practice'. He was, therefore, required to state material facts in the Election Petition under Section 83(1)(a) of the Act. It was, however, not necessary to 'set forth full

particulars', which is the requirement of Section 83(1)(b) of 'any corrupt practice'.

44. In that view of the matter, he contended that the view taken by the learned Single Judge is just and proper and no interference is called for.

45. In rejoinder, Mr. Sharma has strongly relied upon the observations made in Kisan Shankar Kathore (supra) and Mairembam Prithviraj (supra) and guidelines which has sought to be relied upon in para 41 & 43 of Kishan Shankar Kathore (supra) and he contended that the same is required to be disclosed and it is mandatory.

46. We have heard counsel for the parties.

47. Before proceeding with the matter, it will not be out of place to mention that on the basis of material which we have found it is more than clear that it is not a public cause rather this is family dispute between the two brothers on behalf of their better-halves.

47.1 The RC is a wife of younger brother and the appellant is wife of the elder brother therefore, the details which have come on objections are known only to the close family members, otherwise it would have not been known to any person whether RC is a trustee or partner or owning a house and how much land. Thus, under the guise of family dispute, diplomacy has taken place and the same has taken the valuable time of the court for the issue raised is not a big issue but ultimately if we look at the declaration of result which has come on record shows that respondent no.1

Beena has secured votes 11721 and Smt. Rekha wife of Yogesh has secured 736 and Laxmi Kumari secured 4453 votes whereas appellant has secured 341 votes.

48. On the first issue, Rule 25 to 27 is to be read together. At the time when close scrutiny has taken place though every knowledge was there to the appellant but objections were never raised.

49. Therefore, in our considered opinion, to hold nomination was wrongly accepted as envisaged under Rule 80(d) of the Rules of 1994 which has material effect since, there was no objection when the nomination was accepted, in our considered opinion, on a close scrutiny of Rule 80(d), it is clear that the result of the election in so far as at concerned the RC materially effected is to be established beyond reasonable doubt as stated hereinabove. The difference between the candidates are in terms of percentage. If we look at the difference, more than RC, the highest candidate has secured more than four thousand votes and out of the total voting, if it is taken the RC has secured almost 47 to 49 per cent votes.

50. Taking into consideration on a close scrutiny of Rule 80 the objection was not taken, therefore, the contention of Mr. Mathur that candidate has not got a chance to rectify so called mistake under Rule 27 has been lost. Therefore, the contention of Mr. Mathur that at the time of scrutiny of nomination, objections are required to be raised and since at that time, it was not raised, is required to be accepted.

50.1 However, we do not incline to dispose of the appeal on technical ground therefore, even on the material ground, the learned Single Judge while considering the election petition regarding the pleading and jurisdiction has rightly observed and decided that the issues and pleadings which were required in election petition were not raised and as contended by Mr. Mathur that it has to be very precise on the basis of the material on record, we are in complete agreement with the view taken by the learned Single Judge that the election tribunal has committed serious error in allowing the petition on the basis of material available on record.

50.2 The so called disclosure regarding some of the property which has been established was a public road and even under the Income Tax Act, the property was in the name of father in law which is known only to close family members and ultimately in view of the guidelines issued by the State Election Commission, it is not the material required to be verified. It is only for the purpose of public at large and issue has been made about the valuation of the property.

51. In our considered opinion, there is substantial compliance by the respondent herein-original returned candidate. It is true that if we look at the Motor Vehicles Act, the vehicle was not transferred from the name of the husband nevertheless when candidate has filled form to her belief and amount was received therefore, it could not be held that the car is owned by the husband otherwise it would not have been difficult to show Rs.4 lacs received by the

husband. In that view of the matter, to the best of her knowledge, on the date on which nomination was filled in, she is not supposed to verify the RTO record whether the car is transferred or not. Merely producing photograph of car for the purpose is not sufficient. We put a specific question about this fact whether there is any evidence of law to show that anybody of her relative was using that personal car, merely producing a photograph is insufficient in election petition to set aside the election of RC. In a election petition, the precision of proof is to be considered on a very higher standard and it is to be proved beyond reasonable doubt as stated hereinabove. In our reasoning, this is a family dispute which has come in public to disclose how rich they are.

52. In our considered opinion, the view taken by the learned Single Judge is just and proper and the same is required to be accepted and we are accepting the same.

53. On the point of election of the president, we have gone through the election petition. The verbatim of allegations are made in the election petition, relevant para of which, which we have reproduce above. If we look at the election petition, which forms are to be filled under Rule 80 when no pleadings are taken by the counsel for the appellant in the president election namely Sulbha how the election of the president has materially effected and the grounds which are taken in the election petition of the ward cannot be taken to be a ground for president election and merely because the result was declared may be of ward No.10 has

materially effected and she could not get time to canvass is not a ground for setting aside the election of the president.

54. In that view of the matter, both the appeals deserve to be dismissed and the same are dismissed.

55. In the facts of the case, we are imposing cost of Rs.1 lac on the appellant in appeal no.1271/2017 (Smt. Snehlata vs. Smt. Beena & ors) which shall be deposited in the Library of Rajasthan High Court Bar Association, Jaipur.

(VIJAY KUMAR VYAS)J.

(K.S.JHAVERI)J.

Brijesh & Anil



सत्यमेव जयते